

Contract clause wording — drug and alcohol policy

How to use this document. These clauses tie the (organisation) drug and alcohol policy into your contractual documents. They are templates for review by your own adviser before use — contract variation, in particular, has legal consequences this document cannot cover. This is not legal advice.

Included with every policy: a policy without contractual authority is not safely enforceable, so this wording is supplied with the policy and referenced in its accompanying-documents appendix.

Clause 1 — employment contracts (new starters)

Drugs and alcohol. You must comply with the Company's drug and alcohol policy as amended from time to time, a copy of which is available from (policy owner). The policy does not form part of your contract of employment, save that: (a) you must not report for work, remain at work or carry out any work while impaired by alcohol, drugs or other psychoactive substances;...

Limb (b) — shown when a testing programme is active:

(b) you may be required to undergo alcohol and drug testing in accordance with the policy, and you agree that an unreasonable refusal to be tested, or interference with a sample, may be treated as gross misconduct;

Limb (b) — shown when testing is reserved for the future:

(b) the Company reserves the right to introduce alcohol and drug testing following consultation, and where introduced, testing will be conducted in accordance with the policy;

Then, in both variants, the clause closes:

...and (c) a confirmed breach of the policy may result in disciplinary action up to and including dismissal.

Shown when the selected jurisdictions include the Republic of Ireland — the same clause, with (a) extended:

...and you must not, in accordance with section 13 of the Safety, Health and Welfare at Work Act 2005, be under the influence of an intoxicant at work to the extent that you may endanger your own safety, health or welfare or that of any other person.

Clause 2 — existing staff (variation by consultation)

Testing obligations should not be imposed on existing staff by simply reissuing contracts. The defensible route, reflected in section 1.3 of the policy, is consultation and agreement. Suggested letter wording:

Following consultation with staff [and workforce representatives], the Company has adopted a drug and alcohol policy, effective (date). The policy applies to all staff. It includes an alcohol and drug testing programme, conducted by (provider) with laboratory confirmation, medical review and a right of appeal, as set out in the policy. Please read the enclosed policy [and employee awareness leaflet] and sign below to confirm you have received and understood it and agree to comply with it, including its testing provisions as a condition of your employment going forward.

The sentence beginning “It includes an alcohol and drug testing programme” and the words “its testing provisions” are shown only when a testing programme is active; without testing the closing words read “agree to comply with it as a condition of your employment going forward”.

Clause 3 — contractor and agency engagement terms

Drugs and alcohol. The Contractor shall ensure that all personnel engaged in providing the Services comply with the Client’s drug and alcohol policy while on the Client’s premises, worksites or business, a copy of which is available on request. The Client may remove from its premises or worksites any person who appears to be under the influence of alcohol or drugs, and may terminate this engagement for a material breach of this clause. The Contractor shall, on request, provide evidence that it operates equivalent standards of its own.

Inserted after the first sentence. Shown when a testing programme is active:

Contractor personnel may be required to undergo alcohol and drug testing on the same basis, and with the same safeguards, as the Client’s employees, and the Contractor shall procure their cooperation.

Adoption checklist

- Have your own adviser review each clause before use — employment and contract law consequences vary with circumstances.
- New starters: include clause 1 in offers from a fixed date; make offers for relevant roles conditional on a negative pre-employment result where the policy provides for it.
- Existing staff: consult first (section 1.3 of the policy), then use clause 2; keep the signed acknowledgements with (policy owner).
- Contractors: apply clause 3 at next renewal or new engagement; ask incumbents for their own policy as an interim measure.

Supports the (organisation) drug and alcohol policy, version (version), (date). Not legal advice. Prepared with NIVHA Laboratory Services.